

EXHIBIT A

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Exhibit A-1**Term, Billing, Payment, and Miscellaneous Pricing Terms**

1. **TERM.** This Agreement will commence as of January 1, 2022 and will continue for a period of three (3) years (“Initial Term”). The Initial Term plus any renewal terms will be known as the Term (“Term”). Thereafter, this Agreement will automatically renew with the same terms and conditions as set forth herein for successive one (1) year renewal terms, subject to the right of termination as otherwise provided herein. Not less than ninety (90) days prior to the end of the Initial Term or any renewal term of this Agreement either party may notify the other party in writing that it desires to terminate this Agreement effective as of the end of the then current term. Notwithstanding the termination of this Agreement, ESI agrees to continue to render services hereunder and Sponsor agrees to pay for services of ESI in accordance with the terms of this Agreement for any Claims incurred for Prescription drug benefits by Members while this Agreement was in force.
 - a. In the event of a material breach of this Agreement, the party alleging such breach will give written notice thereof to the other parties. If such breach is not cured within sixty (60) days of receipt of such notice, the non-breaching party may terminate this Agreement upon written notice to the other party.
 - b. Sponsor reserves the right to terminate this Agreement at any time during any Term by providing ESI ninety (90) days’ written notice in the event of a Change of Control, provided such right shall expire thirty (30) days after the Change of Control occurs. For purposes of this section, “Change of Control” means: (i) any transaction or series of transactions that cause 50% or more of the stock of the ESI or Sponsor to be held by individuals or entities who are not stockholders of the ESI or Sponsor on the date hereof; or (ii) any sale of ESI assets or that are essential to the business of ESI or Sponsor; or (iii) any merger where ESI or Sponsor is not a surviving entity.
 - c. Termination Without Cause. Following the initial twelve (12) months of this Agreement (but not before), either party may terminate this Agreement for any reason or for no reason upon ninety (90) days prior written notice of such termination to the other party.
2. **BILLING AND PAYMENT.**
 - a. **Billing.** ESI will invoice Sponsor: (i) biweekly for Claims Reimbursements; and (ii) on a monthly basis for the Administrative Fees. If Sponsor disputes any portion of any invoice, Sponsor shall notify ESI, in writing, of the specific amount and reason for such dispute. ESI and Sponsor shall work together, in good faith, to resolve any such dispute after ESI’s receipt of such notice.
 - b. **Payment.** Sponsor will pay ESI by wire, ACH transfer or pre-authorized debit within two (2) Business Days from the date of Sponsor’s receipt of each ESI invoice. Sponsor will be responsible for all costs of collection, and agrees to reimburse ESI for such costs and expenses, including reasonable attorneys’ fees. All amounts not paid by the due date thereof will bear interest at the rate of 1.5% per month or, if lower, the highest interest rate permitted by law. ESI may apply amounts otherwise owed to Sponsor against any unpaid Fees.
3. **PHARMACY MANAGEMENT FUND (“PMF”)**
 - a. ESI will provide up to \$3,000,000 (Flat Amount) implemented as of the Effective Date to reimburse the actual, fair market value of: (i) expense items and services related to transitioning, administering, and implementing the pharmacy benefit initially and throughout the term, such as, custom ID Cards, IT programming, custom formulary letters, member communications, and benefit set-up quality assurance; and/or (ii) mutually agreed upon expense items and services related to implementation of additional clinical or other similar programs provided by ESI throughout the Term; in either case subject to submission of adequate documentation to support reimbursement within 180 days of incurring the applicable expense. Both Sponsor and ESI (upon agreement from Sponsor) may use the PMF to cover the fair market

value of expenses for projects requiring joint resources. All reimbursement under the PMF is subject to ESI's standard PMF business practices for all clients. Any unused PMF dollars from the contract period January 1, 2022 through December 31, 2024 will roll over to the contract period January 1, 2025 – December 31, 2027, solely for the use of purchasing Health Connect 360. Additionally, any unused PMF dollars from the parties' prior contract period (January 1, 2019 through December 31, 2021) will remain available until December 31, 2024, solely for reimbursement of fees for Health Connect 360.

- b. Sponsor confirms that: (i) it will only request reimbursement under the PMF for its actual expenses incurred in transitioning, administering, and implementing the pharmacy benefit managed by ESI hereunder, and/or the additional clinical or other similar program provided by ESI throughout the Term; (ii) that the applicable service, item or program was actually performed or provided; (iii) the amount of the reimbursement is equal to or less than the reasonable fair market value of the actual expenses incurred by Sponsor; (iv) it will notify and disclose the amount and the terms of any PMF reimbursements to Members and other third parties to the extent required by applicable laws and regulations. In addition, if the Sponsor and the Plan are subject to ERISA, Sponsor represents and warrants that it will only request reimbursement under the PMF for items or services for which Sponsor, in the absence of the PMF, would be allowed reimbursement from the Plan (i.e., not "settlor functions").
 - c. Sponsor shall comply with all applicable federal and state requirements, including, but not limited to, all applicable federal and state reporting requirements with respect to any expense, item or service reimbursed under this section. Upon request by ESI, Sponsor shall provide reasonable documentation regarding a PMF-reimbursed expenditure sufficient to verify that the expenditure complies with requirements set forth in this section.
 - d. ESI intends to amortize the PMF over the Initial Term of the Agreement on a straight-line basis. In the event of a termination of this Agreement for any reason other than ESI's uncured material breach prior to the expiration of the Initial Term, Sponsor will reimburse ESI an amount equal to any paid but unamortized portion of the PMF. Reimbursement to ESI by Sponsor pursuant to this Section will not be in lieu of any other rights or remedies ESI may have in connection with the termination of this Agreement, including monetary or other damages. PMF reimbursements shall not be paid prior to the Effective Date of this Agreement and are not payable until this Agreement is executed. Sponsor will have no right to interest on, or the time value of, any PMF, and unused funds shall be retained by ESI.
4. **MARKET CHECK.** Sponsor shall be permitted to perform a market check of the program pricing terms of this Agreement (the "Market Check"). The Market Check will compare the aggregate value of the Sponsor's program pricing terms, and all other contractual terms with a financial impact, such as performance guarantees, using twelve (12) months of ESI historical data, with the aggregate value of pricing terms then currently available in the market for similar services and for individual companies of similar size and plan designs and drug utilization to Sponsor, in the aggregate, for a contract term that is equal to the remainder of the current contract term and which contains the same annual market check and early termination provisions. On an annual basis, Sponsor or its designee may provide ESI with a written comparison (the "Report"), prepared by an independent pharmacy benefit management consultant, for pharmacy benefit management services offered by a third party PBM provider which includes and takes into account similar plan design, formulary exclusions, clinical and trend programs, retail pharmacy, mail pharmacy, and specialty pharmacy mix and utilization, size, demographics, and other relevant factors necessary to provide an appropriate comparison ("Sponsor's Current Market Price"). In evaluating whether Sponsor's Current Market Price is comparable to pricing ESI offers Sponsor under the terms of this Agreement, ESI will validate that, at a minimum, price points used in determining Sponsor's Current Market Price were selected from benchmark plans that satisfy the comparable Sponsor Current Market Price factors listed herein. Sponsor's Current Market Price shall be evaluated on the basis of a total, aggregate comparison of the pricing terms offered by a single vendor to a single plan, and not on the basis of individual or best price points available from multiple vendors to a single plan or a single vendor to multiple plans. A copy Sponsor's Current Market Price analysis prepared by the consultant will be submitted to both Sponsor and to ESI. The consultant will also provide a reasonably detailed description of the methods and assumptions used in the analysis including the methods and assumptions related to the calculation of the individual pricing components and the Net Plan Costs, as defined below. ESI will provide its comments to the Report to Sponsor and the Sponsor's consultant within fifteen (15) Business Days of receipt a format specified by ESI, Sponsor, or its designee, shall provide any information necessary for

ESI to validate Sponsor's compliance with the terms of this Section including, but not limited to, relevant details about any benchmark plans Sponsor relied upon in selecting any price point(s)/financial guarantees used to determine Sponsor's Current Market Price or Net Plan Cost. If the parties agree that the comparison analysis concludes that Sponsor's Current Market Price would yield an annual one percent (1%) or more savings of "Net Plan Costs" (with Net Plan Costs defined as the sum of the cost of Covered Drugs, dispensing fees, and claims Administrative Fees, less Rebates received by Sponsor) under the Agreement, then the parties shall negotiate in good faith a modification of the pricing terms herein.

The revised pricing terms will become effective on the first day of the contract year following the issuance of the report or sixty (60) days following a fully executed amendment or agreement memorializing the revised pricing terms, whichever is later. The market check shall be at Sponsor's expense, except that ESI shall be responsible for its costs related to responding to the market check.

5. **PRICING CONDITIONS.** In the event one or more of the following occurs (whether between the date of the proposal and the Effective Date, or during the Term), ESI will have the right, upon notice, to make an equitable adjustment to the rates, Administrative Fees and/or Rebates, solely as necessary to return ESI to its contracted economic position as of the effective date of such event:

- a. Sponsor's Membership falls below 129,000 Members;
- b. Sponsor has Members enrolled in a 100% co-payment plan (plans where Sponsor has no liability for the payment of pharmacy claims);
- c. There is a material change (defined as 15% or more) in the demographics of Sponsor's Membership, or in the Sponsor's pharmacy or drug mix, compared to data provided by Sponsor;
- d. There is a material change to the manner in which AWP is calculated or reported for Brand Drugs and/or Generic Drugs.

Further, if ESI's ability to provide the financial terms herein are adversely affected due to Brand Drugs moving off-patent to generic status, due to another action by a manufacturer, due to any other industry or market condition, or due to a Change in Law, an appropriate adjustment will be made to the reimbursement rates, financial guarantees, Administrative Fees, and/or Rebates hereunder.

Exhibit A-2**Claims Reimbursement Rates**

Sponsor will pay to ESI for each Prescription Drug Claim dispensed or processed pursuant to the terms of this Agreement. Sales or excise tax or other governmental surcharge, if any, will be the responsibility of Sponsor.

1. **BASE ADMINISTRATIVE FEES.**

- 1.1. Sponsor will pay ESI the following base Administrative Fees on all claims processed by ESI under this Agreement. These shall be in addition to any other Administrative Fees set forth in this Agreement.

Per Prescription Drug Claim
See pricing tables below

2. **PARTICIPATING PHARMACY AND ESI MAIL PHARMACY AVERAGE AGGREGATE ANNUAL INGREDIENT COST AND PASS-THROUGH DISPENSING FEE GUARANTEES (DOES NOT APPLY TO SPECIALTY PRODUCTS).**

2.1. **Participating Pharmacy Commercial Ingredient Cost and Dispensing Fee**

a. **ESI National Plus Network**

National Plus Network Smart90 Walgreens (Voluntary)		1-83 Days' Supply	84-90 Days' Supply
Brand Drug	Admin. Fees/Rx	\$0.50	\$0.50
	Average Annual Ingredient Cost Guarantee	Year 1:AWP-19.25% Year 2:AWP-19.35% Year 3:AWP-19.45%	AWP-25.00%
	Dispensing Fee/Rx Guarantee	Year 1: \$0.55 Year 2: \$0.50 Year 3: \$0.45	\$0.00
Generic Drug	Admin. Fees/Rx	\$0.50	\$0.50
	Average Annual Ingredient Cost Guarantee	Year 1:AWP-85.00% Year 2:AWP-85.10% Year 3:AWP-85.20%	Year 1:AWP-86.50% Year 2:AWP-86.60% Year 3:AWP-86.70%
	Dispensing Fee/Rx Guarantee	Year 1: \$0.55 Year 2: \$0.50 Year 3: \$0.45	\$0.00

2.2. ESI Mail Pharmacy Ingredient Cost and Dispensing Fee

a. Commercial Ingredient Cost and Dispensing Fee

ESI Mail Pharmacy		
Brand Drug	Admin. Fees/Rx	\$0.00
	Average Annual Ingredient Cost Guarantee	Year 1:AWP-25.00% Year 2:AWP-25.10% Year 3:AWP-25.20%
	Dispensing Fee/Rx Guarantee ¹	\$0.00
Generic Drug	Admin. Fees/Rx	\$0.00
	Average Annual Ingredient Cost Guarantee	Year 1:AWP-88.00% Year 2:AWP-88.10% Year 3:AWP-88.20%
	Dispensing Fee/Rx Guarantee ¹	\$0.00

¹Dispensing fee guarantees are inclusive of shipping and handling. If carrier rates (i.e., U.S. mail and/or applicable commercial courier services) increase during the term of this Agreement, the dispensing fee guarantee will not be increased to reflect such increase(s).

On-Site Pharmacies.

Sponsor maintains three on-site pharmacies, Pharmacy for Living Well and Center for Living Well Pharmacy (2 locations), (the "On-Site Pharmacies"). Sponsor will pay ESI on a pass through pricing basis for Covered Drugs dispensed and submitted by the On-Site Pharmacies under the Retail Pharmacy Program, subject to the applicable Copayment amounts. Drug claims dispensed at the On-Site Pharmacies are not subject to the guarantees set forth in Exhibit A. Walgreens Smart90 Voluntary program will not apply to the on-site pharmacies.

3. SPECIALTY PRODUCT PRICING

- 3.1. Dispensing Fee for Specialty Products dispensed at Participating Pharmacy and ESI Specialty Pharmacy. There will be a dispensing fee/Rx of \$0.55 for Year 1, \$0.50 for Year 2, \$0.45 for Year 3 for Specialty Products dispensed through Participating Pharmacies. There will be a dispensing fee of \$0.00 for Specialty Products dispensed through ESI Specialty Pharmacy.
- 3.2. Average Annual Ingredient Cost and Dispensing Fee Guarantees. The following pricing guarantees shall apply to Specialty Products.

ESI Specialty Pharmacy ¹	Exclusive ²
Average Annual Ingredient Cost Guarantee	Year 1:AWP-20.75% Year 2:AWP-21.00% Year 3:AWP-21.25%

¹In addition to the general exclusions identified in this Agreement, all non-Specialty Products are excluded from this guarantee. All Exclusive or Limited Distribution Products are also excluded from this guarantee.

²This guarantee shall only apply to Plans for which the ESI Specialty Pharmacy is the exclusive pharmacy that may fill Specialty Products for Members, other than Exclusive or Limited Distribution Products not available at the ESI Specialty Pharmacy.

Participating Pharmacy ¹	
	Exclusive ²
Average Annual Ingredient Cost Guarantee	Year 1:AWP-20.25% Year 2:AWP-20.50% Year 3:AWP-20.75%

¹In addition to the general exclusions identified in this Agreement, all non-Specialty Products are excluded from this guarantee. All Exclusive or Limited Distribution Products are also excluded from this guarantee.

²The above guarantee shall only apply to Plans for which the ESI Specialty Pharmacy is the exclusive pharmacy that may fill Specialty Products for Members, other than Exclusive or Limited Distribution Products not available at the ESI Specialty Pharmacy.

Limited Distribution Guarantee (ESI Specialty Pharmacy)	
Average Annual Limited Distribution Guarantee	AWP-17.00%

New To Market Guarantee (ESI Specialty Pharmacy)	
Average Annual Limited Distribution Guarantee	AWP-15.50%

- 3.3. ASES. For Specialty Products needing an additional charge to cover costs of all ASES required to administer the Specialty Products, ESI or ESI Specialty Pharmacy will bill, at ESI's option, either the Sponsor's medical plan or the Sponsor directly at the following standard per diem and nursing fee rates set forth below, maintained and updated by ESI from time to time. If ESI elects to bill Sponsor's medical plan for ASES, Sponsor will work with ESI to coordinate the invoicing and payment of ASES through Sponsor's medical plan. If Sponsor's medical plan will not cover the cost of ASES billed through ESI or ESI Specialty Pharmacy, Sponsor shall be responsible for the costs of all ASES. Unless otherwise set forth in an agreement directly between ESI Specialty Pharmacy and Sponsor or a Plan, if a Specialty Product dispensed or ASES provided by ESI Specialty Pharmacy is billed to Sponsor or a Plan directly by ESI Specialty Pharmacy instead of being processed through ESI, Sponsor or Plan will timely pay ESI Specialty Pharmacy for such claim pursuant to the rates below and within thirty (30) days of Sponsor's, Plan's, or its designee's, receipt of such electronic or paper claim from ESI Specialty Pharmacy. ESI Specialty Pharmacy shall have 360 days from the date of service to submit such electronic or paper claim.

Therapeutic Class	Brand Name	Nursing & Per Diem
ALPHA 1 DEFICIENCY	All Alpha 1 Deficiency Drugs requiring Per Diem	\$55.00 / Infusion
ENZYME DEFICIENCY	All Enzyme Deficiency Drugs required Per Diem	\$60.00 / Infusion
IMMUNE DEFICIENCY	All Immune Deficiency Drugs requiring Per Diem	\$60.00 / Infusion

INFLAMMATORY CONDITIONS	Remicade, Renflexis, Inflectra	\$60.00 / Infusion
MISCELLANEOUS SPECIALTY CONDITIONS	Soliris	\$60.00 / Infusion
MISCELLANEOUS SPECIALTY CONDITIONS	Duopa	\$65.00 / Day
PAH	Tyvaso	\$30.00 / Day
PAH	Flolan , Veletri, Epoprostenol Sodium (generic-Flolan/Veletri), Remodulin, Treprostenol Sodium (generic-Remodulin).	\$65.00 / Day
PAH	Ventavis	\$65.00 / Day
Cystic Fibrosis	Cayston (Replacement Nebulizer)	\$975.00
Nursing Rates	All drugs / therapies requiring nursing	\$150.00 per Initial Visit up to two (2) hours / \$75.00 per additional hour or a fraction thereof

4. **COMPOUND PRESCRIPTION DRUG PRICING.**

	ALL YEARS
Compound Prescriptions (not listed elsewhere)	Pass-Through

5. **GENERAL PRICING TERMS.** The following terms are applicable to all pricing terms set forth in this Agreement.

- 5.1. **Calculation of Ingredient Cost Guarantees.** ESI will guarantee an average aggregate annual discounts to Sponsor to be calculated as follows:

[1-(total discounted AWP ingredient cost excluding dispensing fees and ancillary charges, and prior to application of Copayments) of applicable Prescription Drug Claims for the annual period divided by total undiscounted AWP ingredient cost (both amounts will be calculated as of the date of adjudication) for the annual period)]. Discounted ingredient cost will be the lesser of MRA (as applicable), U&C or AWP discount.

- 5.2. **Calculation of Dispensing Fee Guarantees.** ESI will guarantee an average aggregate annual per Prescription Drug Claim dispensing fee to Sponsor to be calculated as follows:

[total dispensing fee of applicable claims for the annual period divided by total claims for the annual period].

- 5.3. **All-In Guarantees.** Notwithstanding anything herein to the contrary: (i) a Prescription Drug Claim that processes as a Brand Drug at adjudication shall be reconciled as part of the Brand Drug guarantee; and (ii) a Prescription Drug Claim that processes as a Generic Drug at the time of adjudication shall be reconciled as part of the Generic Drug guarantee. The only Prescription Drug Claims that shall be excluded from the reconciliation of the pricing guarantees are as identified in the "Exclusions" section. All other Prescription Drug Claims shall be included in the reconciliation of the guarantees. The application of brand and generic pricing below may be subject to certain "dispensed as written" (DAW) protocols and Sponsor or Plan defined plan design and coverage policies for adjudication and Member Copayment purposes.

- 5.4. **Guarantee Reconciliation Period.** The ingredient cost and dispensing fee guarantees under this Agreement will be measured and reconciled on an annual basis within ninety (90) days and for Specialty Product guarantee (90) days of the end of each contract year. ESI will pay the shortfall, if any, between Sponsor's net cost and the applicable guarantee. The guarantees are annual guarantees - if this Agreement is terminated prior to the completion of the then current contract year (hereinafter, a "Partial Contract Year"),

then the guarantees will not apply for such Partial Contract Year. To the extent Sponsor changes its benefit design or Formulary during the term of the Agreement, the guarantee will be equitably adjusted if there is a material impact on the discount achieved. Subject to the remaining terms of this Agreement, ESI will pay the difference attributable to any shortfall between the actual result and the guaranteed result; provided, however, that ESI may use an excess achieved in one or more of the guarantees within a channel (with the channels being retail and mail, Specialty Products will be included in the channel from which they were dispensed) under this Agreement to make up for, and offset, a shortfall in any other guarantee within the same channel, excluding any Rebate guarantees, which will be reconciled and offset only against other Rebate guarantees.

- 5.5. Exclusions. The following will be excluded from all ingredient cost and dispensing fee guarantees under this Agreement: Specialty Products (other than specialty guarantee, if any), coordination of benefit claims, no bill/no remit, Claims through 340B pharmacies, Subrogation Claims, claims dispensed from an on-site or Sponsor or Plan owned pharmacy, Member Submitted Claims, Compound Prescription, OTCs, vaccines, and Biosimilar Drugs. Claims where pharmacy reimbursement is determined by law, not ESI's contract with the provider will be excluded from dispensing fee guarantees only.* *Additionally, ESI will retrospectively invoice Sponsor for the difference between Sponsor's contracted dispensing fee and any state mandated pharmacy dispensing fee resulting from claims incurred in any state that mandates the use of NADAC or another pricing benchmarks in pharmacy reimbursement.
- 5.6. Adjudication Rates. If no adjudication rates are specified herein, individual claims dispensed at Participating Pharmacies will be billed on a Pass-Through basis. Claims dispensed at ESI Mail Pharmacy will be adjudicated to Sponsor at the applicable ingredient cost, and will be reconciled to the applicable guarantee as set forth herein.
- 5.7. Conditions Applicable to Extended Days' Supply Pricing. The Extended Days' Supply pricing set forth in this Agreement shall be subject to certain requirements, as set forth in this Section. Extended Days' Supply shall mean; for all lines of business other than Medicare or EGWP, any supply of a Covered Drug of 84 days.
 - a. Walgreens Smart90 (Voluntary). Certain Participating Pharmacies have agreed to participate, together with the ESI Mail Pharmacy, in the ESI "Smart90 Walgreens Network" extended 84-90 days' supply network for maintenance drugs (such Participating Pharmacies and the ESI Mail Pharmacy are hereinafter collectively referred to as "ESI's Smart90 Walgreens Network"). Pricing in the 84-90 days' supply column set forth in this Agreement is applicable only to fill such extended days' supply at either the ESI Mail Pharmacy or a Participating Pharmacy in the ESI Smart90 Walgreens Network (i.e., Sponsor must implement a plan design whereby Members who fill an extended 84-90 days' supply at a Participating Pharmacy other than an ESI Smart90 Walgreens Network Participating Pharmacy do not receive benefit coverage under the Plan for such prescription). If no such plan design is implemented, the pricing for such days' supply will be the same as for Prescription Drug Claims for less than an 84 days' supply, and pricing for an 84-90 days' supply as set forth in this Agreement shall not apply, even if an ESI Smart90 Walgreens Network Participating Pharmacy is used. The co-payment amount must also be level between the ESI Smart90 Walgreens Network and the ESI Mail Pharmacy, and the co-payment for 84-90 days' supply cannot exceed 2.5 times the co-payment for less than 83 day retail days' supply. For coinsurance/percentage co-payments, co-payments could be different at ESI Smart90 Walgreens Network Participating Pharmacy vs. ESI Mail Pharmacy. If a regulatory body enacts a law, regulation, or other guidance that prohibits the Walgreens Smart90 Program, ESI will adjust Sponsor's rates accordingly.
 - b. Walgreens Smart90 (Exclusive). Certain Participating Pharmacies have agreed to participate, together with the ESI Mail Pharmacy, in the ESI "Smart90" extended 84-90 days' supply network for maintenance drugs (such Participating Pharmacies and the ESI Mail Pharmacy are hereinafter collectively referred to as "ESI's Smart90 Network"). Pricing in the 84-90 days' supply column set forth in this Agreement is applicable only if Sponsor implements a plan design that requires Members: (i) to fill maintenance drugs (based on ESI's standard list of identified maintenance drugs) in extended 84-90 days' supply quantities only (i.e., no 30 day fills except for initial courtesy fill(s)); and (ii) to fill such extended days' supply at either the ESI Mail Pharmacy or a Participating

Pharmacy in the ESI Smart90 Network (i.e., Sponsor must implement a plan design whereby Members who fill maintenance drugs for less than an extended 84-90 days' supply or who fill an extended 84-90 days' supply at a Participating Pharmacy other than an ESI's Smart90 Network Participating Pharmacy do not receive benefit coverage under the Plan for such prescription). If no such plan design is implemented, the pricing for such days' supply will be the same as for Prescription Drug Claims for less than an 84 days' supply, and pricing for an 84-90 days' supply as set forth in this Agreement shall not apply, even if an ESI Smart90 Network Participating Pharmacy is used. The co-payment amount must also be level between the ESI Smart90 Network and the ESI Mail Pharmacy. For coinsurance/percentage co-payments, co-payments could be different at ESI Smart90 Network Participating Pharmacy vs. ESI Mail Pharmacy. If a regulatory body enacts a law, regulation, or other guidance that prohibits the Smart90 Program, ESI will adjust Sponsor's rates accordingly.

6. VACCINE CLAIMS (NO VACCINE CLAIMS WILL BE INCLUDED IN ANY PRICING OR REBATE GUARANTEE SET FORTH IN THE AGREEMENT).

6.1. General Terms applicable to Vaccine Claims

- a. "Vaccine Claim" means a claim for a Covered Drug which is a vaccine.
- b. "Vaccine Vendor Transaction Fee" means the data interchange fee that ESI is charged by its third party vendor to convert Vaccine Claims submitted electronically by physicians to NCPDP 5.1 format in order for ESI to process the claim.
- c. Vaccine Claims shall adjudicate at the lower of U&C or the amounts shown in the table below. In the case of Vaccine Claims, the U&C shall be the retail price charged by a Participating Pharmacy for the particular vaccine, including administration and dispensing fees, in a cash transaction on the date the vaccine is dispensed as reported to ESI by the Participating Pharmacy.
- d. The Vaccine Administration Fee for Vaccine Claims for Members enrolled in Sponsor's Medicaid programs, if any, will be capped at the maximum reimbursable amount under the state Medicaid program in which the Member is enrolled.
- e. All Vaccine Claims will be subject to any Administrative Fees set forth in the Agreement.
- f. Vaccine Claims will be charged a program fee of \$2.50 per Vaccine Claim (except for Medicare Part D covered Vaccine Claims, if applicable). The Vaccine Program Fee will be billed separately to Sponsor as part of the administrative invoice according to the billing frequency set forth in this Agreement.

6.2. Commercial (Including Medicaid and Exchange, if applicable)

	Participating Pharmacy INFLUENZA	Participating Pharmacy COVID19¹	Participating Pharmacy ALL OTHER VACCINES	Member Submitted Vaccine Claims (excluding foreign claims)
Vaccine Administration Fee	Pass-Through (capped at \$15 per vaccine claim)	Pass-Through	Pass-Through (capped at \$20 per vaccine claim)	Submitted amount
Ingredient Cost	Participating Pharmacy Ingredient Cost as set forth in the Agreement	Pass-Through ²	Participating Pharmacy Ingredient Cost as set forth in the Agreement	Submitted amount
Dispensing Fee	Participating Pharmacy Dispensing Fee as set forth in the Agreement	Pass-Through	Participating Pharmacy Dispensing Fee as set forth in the Agreement	Submitted amount

Administrative Fee/Vaccine Claim	Administrative Fee per Prescription Drug Claim as set forth in the Agreement	Administrative Fee per Prescription Drug Claim (plus manual claim administrative fee) as set forth in the Agreement
Vaccine Program Fee	\$2.50 per vaccine claim	N/A

¹Notwithstanding anything in the Agreement to the contrary, claims for COVID19 vaccines will be excluded from all pricing and rebate guarantees.

²Not applicable for claims paid for by Federal funding during public health emergency.

7. **Surplus Value Guarantee.** Following reconciliation of all discount, dispensing fee, or rebate guarantees, on an annual basis, ESI will calculate the value of any over-performance of any discount, dispensing fee, or rebate guarantee set forth in the Agreement and will guarantee that the annual, aggregate over-performance of the aforementioned guarantees will equate to a minimum of \$2,000,000. The measurement will be performed no later than 240 days following the end of the applicable measurement period. Each individual guarantee's over-performance shall be aggregated with one another to calculate the value of the total Surplus Value Guarantee. To the extent that the value of the Surplus Value Guarantee is less than \$2,000,000 Dollars, ESI will remit the difference to Sponsor within 90 days of the measurement. This Surplus Value Guarantee is conditioned on a Sponsor maintaining a minimum 129,000 Members throughout the calendar year.

Scenario 1 - No Surplus Guarantee - Illustrative Only				Scenario 2 - Surplus Guarantee - Illustrative Only			
Guarantee	Guarantee	Actual	Overage/Shortfall (\$)	Guarantee	Guarantee	Actual	Overage/Shortfall (\$)
Retail Brand Discount	18.00%	17.80%	\$ (15,000)	Retail Brand Discount	18.00%	17.80%	\$ (15,000)
Retail Generic Discount	80.00%	79.00%	\$ (400,000)	Retail Generic Discount	80.00%	79.00%	\$ (400,000)
Mail Brand Discount	24.00%	24.00%	\$ -	Mail Brand Discount	24.00%	24.00%	\$ -
Mail Generic Discount	85.00%	86.00%	\$ 50,000	Mail Generic Discount	85.00%	86.00%	\$ 50,000
Retail Brand Dispensing Fee	\$ 0.90	\$ 0.88	\$ 2,000	Retail Brand Dispensing Fee	\$ 0.90	\$ 0.88	\$ 2,000
Retail Generic Dispensing Fee	\$ 0.90	\$ 0.85	\$ 15,000	Retail Generic Dispensing Fee	\$ 0.90	\$ 0.85	\$ 15,000
Mail Brand Dispensing Fee	\$ -	\$ -	\$ -	Mail Brand Dispensing Fee	\$ -	\$ -	\$ -
Mail Generic Dispensing Fee	\$ -	\$ -	\$ -	Mail Generic Dispensing Fee	\$ -	\$ -	\$ -
Retail Rebates	\$ 110.00	\$ 115.47	\$ 2,000	Retail Rebates	\$ 110.00	\$ 115.47	\$ 2,000
Mail Rebates	\$ 330.00	\$ 352.24	\$ 15,000	Mail Rebates	\$ 330.00	\$ 352.24	\$ 15,000
Specialty Rebates	\$ 500.00	\$ 841.20	\$ 87,000	Specialty Rebates	\$ 500.00	\$ 841.20	\$ 87,000
Specialty NED	17.00%	17.24%	\$ 4,000	Specialty NED	17.00%	17.24%	\$ 4,000
Total Overage			\$ 175,000	Total Overage			\$ 175,000
Paid Guarantee Shortfall			\$ 415,000	Paid Guarantee Shortfall			\$ 415,000
Surplus Guarantee			\$ -	Surplus Guarantee			\$ 2,000,000
Paid Surplus Guarantee			\$ -	Paid Surplus Guarantee			\$ 1,825,000
Pre-Reconciliation Cost			\$ 99,700,000	Pre-Reconciliation Cost			\$ 99,700,000
Paid Guarantee Shortfall			\$ 415,000	Paid Guarantee Shortfall			\$ 415,000
Paid Surplus Gtee			\$ -	Paid Surplus Gtee			\$ 1,825,000
Post-Reconciliation Cost			\$ 99,285,000	Post-Reconciliation Cost			\$ 97,460,000

EXHIBIT A-3**Rebates****1. NON-SPECIALTY REBATE AMOUNTS**

1.1. Subject to the conditions set forth in this Agreement, ESI will pay to Sponsor an amount equal to the greater of:

- a. 100.00% of the Rebates and Manufacturer Administrative Fees received by ESI; or subject to Sponsor meeting the Plan design conditions identified in the table below, the following guaranteed amounts:
- b. Commercial

Basic Formulary			
Formulary:	Onsite Pharmacies & Participating Pharmacies		ESI Mail Pharmacy
Days' Supply	1-83 Days' Supply	84-90 Days' Supply	
Per Brand Drug Claim (non-Specialty Products)	Year 1: \$180.00 Year 2: \$190.00 Year 3: \$200.00	Year 1: \$467.50 Year 2: \$495.00 Year 3: \$508.75	Year 1: \$510.00 Year 2: \$540.00 Year 3: \$555.00

NPF Open			
Formulary:	National Preferred (NPF)		
	Onsite Pharmacies & Participating Pharmacies		ESI Mail Pharmacy
Days' Supply	1-83 Days' Supply	84-90 Days' Supply	
Per Brand Drug Claim (non-Specialty Products)	Year 1: \$250.00 Year 2: \$255.00 Year 3: \$260.00	Year 1: \$420.00 Year 2: \$480.00 Year 3: \$520.00	Year 1: \$700.00 Year 2: \$710.00 Year 3: \$740.00

NPF Closed			
Formulary:	National Preferred (NPF)		
	Onsite Pharmacies & Participating Pharmacies		ESI Mail Pharmacy
Days' Supply	1-83 Days' Supply	84-90 Days' Supply	
Per Brand Drug Claim (non-Specialty Products)	Year 1: \$325.00 Year 2: \$330.00 Year 3: \$335.00	Year 1: \$685.00 Year 2: \$750.00 Year 3: \$770.00	Year 1: \$820.00 Year 2: \$840.00 Year 3: \$860.00

1.2. REBATE PAYMENT TERMS

- a. Subject to the conditions set forth herein, ESI shall pay Sponsor the percentage amount set forth above during each calendar quarter hereunder within ninety (90) days following the end of such calendar quarter.
- b. On an annual basis, ESI shall reconcile the guaranteed amounts set forth above (against the percentage amount paid to Sponsor quarterly including any amounts applied at the point of sale) within one hundred eighty (180) days following the end of each contract year and shall credit Sponsor for any deficit on the next invoice immediately following the reconciliation. If, upon reconciliation, the annual aggregate percentage amount paid to Sponsor for the contract year is greater than the guaranteed aggregate amounts, ESI shall be

entitled to make up for, and offset, a shortfall in other Rebate guarantee(s) set forth in this offer with such excess annual aggregate percentage amount, and such excess amount shall be applied either directly to the other shortfall guarantee(s) or applied as a credit against future Rebate payments and Manufacturer Administrative Fee payments (or as a direct invoice amount to be paid by Sponsor, if a credit is not feasible).

2. SPECIALTY REBATE AMOUNTS

2.1. Subject to the conditions set forth in this Agreement, ESI will pay to Sponsor an amount equal to the greater of:

- a. 100.00% of the Rebates and Manufacturer Administrative Fees received by ESI; or subject to Sponsor meeting the Plan design conditions identified in the table below, the following guaranteed amounts:
- b. Commercial

Formulary:	Basic Formulary	
	Participating Pharmacies	ESI Specialty Pharmacy
Per Brand Drug Claim (Specialty Products)	Year 1: \$200.00 Year 2: \$250.00 Year 3: \$350.00	Year 1: \$2,250.00 Year 2: \$2,770.00 Year 3: \$3,320.00

	NPF Open	
Formulary:	National Preferred (NPF)	
	Participating Pharmacies	ESI Specialty Pharmacy
Per Brand Drug Claim (Specialty Products)	Year 1: \$295.00 Year 2: \$340.00 Year 3: \$396.00	Year 1: \$2,650.00 Year 2: \$3,350.00 Year 3: \$3,950.00

	NPF Closed	
Formulary:	National Preferred (NPF)	
	Participating Pharmacies	ESI Specialty Pharmacy
Per Brand Drug Claim (Specialty Products)	Year 1: \$375.00 Year 2: \$475.00 Year 3: \$575.00	Year 1: \$2,720.00 Year 2: \$3,445.00 Year 3: \$4,030.00

Formulary:	Basic Formulary	
	Onsite Pharmacies	
Days' Supply	1-83 Days' Supply	84-90 Days' Supply
Per Brand Drug Claim (Specialty Products)	Year 1: \$200.00 Year 2: \$250.00 Year 3: \$350.00	Year 1: \$2,250.00 Year 2: \$2,770.00 Year 3: \$3,320.00

NPF Open		
Formulary:	National Preferred (NPF)	
	Onsite Pharmacies	
Days' Supply	1-83 Days' Supply	84-90 Days' Supply
Per Brand Drug Claim (Specialty Products)	Year 1: \$295.00 Year 2: \$340.00 Year 3: \$396.00	Year 1: \$2,650.00 Year 2: \$3,350.00 Year 3: \$3,950.00

NPF Closed		
Formulary:	National Preferred (NPF)	
	Onsite Pharmacies	
Days' Supply	1-83 Days' Supply	84-90 Days' Supply
Per Brand Drug Claim (Specialty Products)	Year 1: \$375.00 Year 2: \$475.00 Year 3: \$575.00	Year 1: \$2,720.00 Year 2: \$3,445.00 Year 3: \$4,030.00

2.2. REBATE PAYMENT TERMS

- a. Subject to the conditions set forth herein, ESI shall pay Sponsor the percentage amount set forth above for during each calendar quarter hereunder within ninety (90) days following the end of such calendar quarter.
- b. On an annual basis, ESI shall reconcile the guaranteed amounts set forth above (against the percentage amount paid to Sponsor quarterly including any amounts applied at the point of sale) within one hundred eighty (180) days following the end of each contract year and shall credit Sponsor for any deficit on the next invoice immediately following the reconciliation. If, upon reconciliation, the annual aggregate percentage amount paid to Sponsor for the contract year is greater than the guaranteed aggregate amounts, ESI shall be entitled to make up for, and offset, a shortfall in other Rebate guarantee(s) set forth in this offer with such excess annual aggregate percentage amount, and such excess amount shall be applied either directly to the other shortfall guarantee(s) or applied as a credit against future Rebate payments and Manufacturer Administrative Fee payments (or as a direct invoice amount to be paid by Sponsor, if a credit is not feasible).

3. CONDITIONS (APPLIES TO ALL REBATES)

- 3.1. ESI contracts for Rebates and Manufacturer Administrative Fees, if indicated to be paid above, on its own behalf and for its own benefit, and not on behalf of Sponsor. Accordingly, ESI retains all right, title and interest to any and all actual Rebates and Manufacturer Administrative Fees received. ESI will pay Sponsor amounts equal to the Rebate and Manufacturer Administrative Fees amounts allocated to Sponsor, as specified above, from ESI's general assets (neither Sponsor, its Members, nor Sponsor's plan retains any beneficial or proprietary interest in ESI's general assets). Sponsor acknowledges and agrees that neither it, its Members, nor its Plan will have a right to interest on, or the time value of, any Rebate payments or Manufacturer Administrative Fee payments received by ESI during the collection period or moneys payable under this Section. No amounts for Rebates or Manufacturer Administrative Fees will be paid until this Agreement is executed by Sponsor. ESI will have the right to apply Sponsor's allocated Rebate amount and Manufacturer Administrative Fees amount to unpaid Fees.
- 3.2. Guarantee Exclusions: Specialty Products (other than Specialty guarantees, if any), Member Submitted Claims, Subrogation Claims, Medicaid Subrogation claims, Biosimilar Drugs, DAW5 multi-source brands, vaccines, OTC products, claims older than 180 days, Claims through 340B pharmacies, coordination of benefit claims, claims with no cost to Sponsor, Compound Prescriptions, and claims pursuant to a 100% Member Copayment plan are not eligible for guaranteed Rebate amounts (if any).

- 3.3.** ESI reserves the right to adjust the Rebate guarantees if Rebate revenue is materially decreased (defined as 15% or more) because Brand Drugs move off-patent to generic status or due to a Change in Law. Any Rebate guarantees apply only to claims where Sponsor incurs a claims cost. ESI reserves the right to adjust the Rebate guarantees if Rebate revenue is materially decreased because Brand Drugs unexpectedly move off-patent to generic status or due to a Change in Law.
- 3.4.** Sponsor acknowledges that it may be eligible for Rebate amounts and Manufacturer Administrative Fee amounts under this Agreement only so long as Sponsor, its affiliates, or its agents do not contract directly or indirectly with anyone else for discounts, utilization limits, rebates or other financial incentives on pharmaceutical products or formulary programs for claims processed by ESI pursuant to the Agreement, without the prior written consent of ESI. In the event that Sponsor negotiates or arranges for Rebates or similar discounts for any Covered Drugs hereunder, but without limiting ESI's right to other remedies, ESI may immediately withhold any Rebate amounts or Manufacturer Administrative Fee amounts earned but not yet paid to Sponsor. To the extent Sponsor knowingly negotiates and/or contracts for discounts or rebates on claims for Covered Drugs without prior written approval of ESI, such activity will be deemed to be a material breach of this Agreement, entitling ESI to suspend payment of Rebate amounts and Manufacturer Administrative Fee amounts hereunder and to renegotiate the terms and conditions of this Agreement.
- 3.5.** Under its Rebate program, ESI may implement ESI's Formulary management programs and controls, which may include, among other things, cost containment initiatives, and communications with Members, Participating Pharmacies, and/or physicians. ESI reserves the right to modify or replace such programs from time to time. Guaranteed Rebate amounts, if any, set forth herein, are conditioned on adherence to various Formulary management controls, benefit design requirements, claims volume, and other factors stated in the applicable rebate agreements, as communicated by ESI to Sponsor from time to time. If any government action, change in law or regulation, change in the interpretation of any law or regulation, or any action by a pharmaceutical manufacturer has material adverse effect (defined as 15% or more) on the availability of Rebates, then ESI may make an adjustment to the Rebate terms and guaranteed Rebate amounts, if any, hereunder.
- 3.6.** Rebate and Manufacturer Administrative Fee amounts paid to Sponsor pursuant to this Agreement are intended to be treated as "discounts" pursuant to the federal anti-kickback statute set forth at 42 U.S.C. §1320a-7b and implementing regulations. Sponsor is obligated if requested by the Secretary of the United States Department of Health and Human Services, or as otherwise required by applicable law, to report the Rebate amounts and to provide a copy of this notice. ESI will refrain from doing anything that would impede Sponsor from meeting any such obligation.

Exhibit A-4**Administrative Services and Clinical Program Fees****INCLUDED SERVICES**

Services listed below are included within the pricing offered; additional services may be available for additional fees. Additional terms and conditions may apply for the below services.

Benefits Management	
Basic PBM Services	• Electronic claims processing • Customer service for members • Eligibility submission and maintenance • Plan set-up and validation • FSA eligibility feeds • Primary claim avoidance for secondary payers based on eligibility file (i.e. reject claims submitted as primary) • Strategic account planning support
Formulary & Retail Network Services	• Formulary services and notifications • Pharmacy network management and reimbursement • Basic network pharmacy audit • Pharmacy help desk
Implementation Services	• Implementation support • New member packets (includes two standard resin ID cards) • Member replacement cards printed via web
Technology and Communication Services	• Express Scripts member website (express-scripts.com) and mobile app • Co-branding on communication materials
Pharmacy	
Personalized Pharmacy Experience	• Online ordering and prescription management through Express Scripts Pharmacy • Specialty Pharmacy Website (accredo.com) and Accredo Mobile App • Standard prescription delivery • Specialized pharmacist support through Therapeutic Resource Centers • Extended Payment Program (EPP)
Clinical	
Simple and Affordable Clinical Solutions	• e-Prescribing and Electronic Prior Authorization (ePA) • Overrides - Sponsor requested overrides, lost/stolen overrides, vacation supplies • Concurrent Drug Utilization Review (DUR) • Drug Conversion Program (Therapeutic Interchange) • Digital Health Formulary Development • Patient Assurance Program
Intelligence	
Advanced Analytics and Insights	• Client Website — eService Delivery (eligibility, claims, and benefit administration), coverage management and appeals, eligibility file transfer • Trend Central – on demand web-based reporting • Billing reports with electronic claims detail extract file (NCPDP) • Load 12 months claims history for clinical reports and reporting • Software training for our online systems

ADDITIONAL SERVICES

Below are common additional services and fees. A comprehensive list of additional services and associated fees is available upon request. Additional services may be subject to additional terms and conditions.

Benefits Management

Additional PBM Services			
Direct/Paper Claims		\$1.50 per claim	
Standard Single Sign-On (SSO)		\$0.00	
Subrogation Claims COB Adjudication (Standalone)		17% of the overpayment amounts recovered \$3.00 per paid claim \$3.00 per paid claim	
Electronic Pharmacy Benefit Eligibility Verification		Pass-through at Express Scripts' preferred rate with data switch such as Surescripts	
Enhanced Network Pharmacy Audit		Enhanced Plus \$0.04/paid claim	
Vaccine Program		\$2.50 per vaccine claim	
Emerging Therapeutic Issues Program (ETIP) (optional): Alerts members and healthcare professionals about significant safety-related drug recalls for scripts filled at a retail pharmacy		\$0.05 PMPM and \$1.35 /letter + postage for mailed communications	
SafeGuard Programs		No out-of-pocket expense to Plan Sponsor; Sponsor's fees to ESI are paid through retention of portion of manufacturer value associated with program.	
SaveonSP (Must be enrolled in exclusive specialty program through Accredo)		Sponsor's fee to SaveonSP 25% of realized savings	
Express Scripts Right Price (optional) Not applicable to Medicare Part D plans		No out-of-pocket expense to Plan Sponsor; any generic surplus value created from Right Price impacted claims may be applied towards meeting other channel guarantees	
Reviews and Appeals Management			
Purchase Arrangement		Fee per Initial Determination	
Purchasing PMPM based AUM Package/List?	Purchasing ESI Level 2 and Urgent Appeal Service?	UM (PA, Step, QLL)	Benefit Reviews
Yes	No	\$0	\$55
Yes	Yes	\$10	\$65
No	No	\$55	\$55
No	Yes	\$65	\$65
External Reviews (optional) Facilitated by UM company, reviewed by independent review organizations		\$800 per review	
Advanced Benefit Management / Data Integration			
Consumer-Directed Health (CDH) Plan Enrollees Advanced Data Integration, Member Decision Support, Member Adherence and Member Education		\$0.35 PMPM	
Combined Benefit Management (Non-CDH Plan Enrollees) Services to manage combined medical-pharmacy benefits that are not a consumer-directed health (CDH) plan. Combined benefit types may include deductible, out of pocket, spending account, and lifetime maximum.		\$0.10 PMPM per combined accumulator for existing connection with medical carrier or TPA (up to a maximum \$0.20 PMPM)	